

**Judge Mosbarger – Law & Motion – Wednesday, August 5, 2026 @ 9:00 AM
TENTATIVE RULINGS**

1. 22CV01506 VAIL, NATHAN ET AL v. ANDERSON BURTON CONSTRUCTION, INC ET AL

EVENT: Motion to Bifurcate

The Court finds that based upon the allegations in the Second Amended Complaint, as well as those in the Cross-Complaint, bifurcation would not aid or result in the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation (*Code of Civil Procedure* §598), nor the furtherance of convenience or to avoid prejudice, or expedition and economy (*Code of Civil Procedure* §1048(b)). Thus, bifurcation is not warranted here and Plaintiffs/Cross-Defendants Nathan Vail and Emily Vail's Motion to Bifurcate is denied. The Court will sign the form of order submitted by Defendants/Cross-Complainants Anderson Burton Construction, Inc. and CAN Financial Corporation dba CAN Surety.

2. 23CV01437 HENRY, MONICA v. JELLEETHER MARIE ET AL

EVENT: Defendant Jellether Marie Moore's Motion to Vacate Dismissal; Enforce Settlement Agreement Pursuant to Court's Retained Jurisdiction; Entry of Judgment Cancelling Quitclaim Deed as Void; Request for Judicial Notice; Request for Attorney Fees/Costs

Defendant Jellether Marie Moore's ("Defendant" herein) Request for Judicial Notice is granted. Defendant's Motion to Vacate Dismissal; Enforce Settlement Agreement Pursuant to Court's Retained Jurisdiction; Entry of Judgment Cancelling Quitclaim Deed as Void; Request for Judicial Notice; Request for Attorney Fees/Costs is unopposed and is GRANTED in its entirety. The Court finds that the Request for Dismissal entered on January 17, 2026 is in violation of the terms of the Settlement Agreement and is hereby stricken. See, Settlement Agreement attached to the Declaration of Michael W. McCrady at Exhibit A, Paragraph 2.(d) ["...Plaintiff shall file a request for dismissal with prejudice of KAM and without prejudice of MOORE..."] Further, the Court finds that the Quit Claim Deed purporting to convey the real property from Defendant to Plaintiff dated June 6, 2025, was prematurely recorded on August 25, 2025 (Butte County Recorder Document No. 2025-0022425) in violation of the terms of the Settlement Agreement and is declared void ab initio and of no force or effect. See, Settlement Agreement attached to the Declaration of Michael W. McCrady at Exhibit A, Paragraph 2.(f) ["...The quitclaim deed shall be executed and delivered to Jamil White to hold, but not record, until such time as Henry removes Moore from the existing loan obligation such as refinancing, paying off loan, or selling Subject Property."] Lastly, the Court awards attorneys' fees and costs in the amount of \$6,612 to Defendant and against Plaintiff Monica Henry and her counsel of record, Jamil L. White/Louis White PC, pursuant to Paragraph 10 of the Settlement Agreement. The Court will sign the form of order submitted by counsel as it relates to this Motion, and the Court sets this matter for hearing on September 9, 2026 at 10:30 a.m.

for status of Judgment, which is to be prepared and submitted by counsel for the Defendant within two weeks.

3. 24CV02857 PLATTS, TOBIAS, II ET AL v. JOHNSON, MARK ET AL

EVENT: Defendants' Motion for Sanctions for Failure to Comply with the Court's July 1, 2026 Order Compelling Further Discovery Responses; Request for Terminating and Monetary Sanctions

The Proof of Service indicates that the Motion was served electronically on July 17, 2026, which is only 13 Court days' notice. Pursuant to *Code of Civil Procedure* §1005(b), an additional 3 Court days' notice is required, and pursuant to *Code of Civil Procedure* §1010.6(3)(B), an additional 2 Court days' notice is required for electronic service. Thus, notice here is insufficient. Additionally, the Court notes that the Motion was served on counsel ilan@hotelinjurylaw.com however, the only email address in the Court's file is litigation@hotelinjurylaw.com, so notice is insufficient in this regard as well. The Motion is continued to September 2, 2026 at 9:00 a.m. to allow for proper notice and the filing of an additional proof of service. The Court vacates the Mandatory Settlement Conference on August 24, 2026 and sets the Mandatory Settlement Conference for September 11, 2026 at 3:00 p.m. with Judge Philip Heithecker.

4. 24CV03259 PARK, LISA ET AL v. GOSSAGE, IVAN

EVENT: Plaintiffs' Motion to Continue Trial Date, Trial Readiness Conference, Discovery, and all Trial Related Deadlines

Plaintiffs' Motion to Continue Trial Date, Trial Readiness Conference, Discovery, and all Trial Related Deadlines is denied, the Court not finding good cause for the requested continuance. The Court confirms the Trial Readiness Conference on August 13, 2026 at 1:30 p.m. and the Jury Trial on August 17, 2026 at 8:00 a.m. with a 3-day estimate.

5-6. 25CV01669 CONNELL, ZACKARY v. CRAFT, SHEILA ET AL

*EVENTS: (1) Defendant Melissa Crick's Motion to Strike Re: First Amended Complaint
(2) Zachary Connel's Motion to Strike Defendant Sheila Craft's Jury Demand*

The Court is in receipt of an untimely opposition, filed by Plaintiff Zachary Connell on July 28, 2026, the day before the reply was due pursuant to *Code of Civil Procedure* §1005(b). That Section requires an opposition be filed and served no later than 9 Court days before the hearing, which here was July 23, 2026. The Opposition is untimely and pursuant to Butte County Local Rule 3.11B, the Court refuses to consider such. Defendant Melissa Crick's Motion to Strike Re: First Amended Complaint is deemed unopposed and is granted. Counsel for Defendant shall prepare and submit a form of order within two weeks.